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NEWS

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CAR: EU donors must prioritize accountability

European Union (EU) member states and all donors attending the Brussels Conference for the Central African Republic (CAR) on 17 November must take concrete steps to end impunity in CAR, as a deteriorating security situation threatens to plunge the country into yet more deadly violence, Amnesty International said today.

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There is a climate of impunity in CAR, where members of armed groups and militias alleged to have committed appalling human rights abuses and crimes under international law, move freely throughout the country and continue to fuel violence

Ilaria Allegrozzi, Amnesty International's Central Africa Researcher

“Without accountability for past and current crimes, the pattern of conflict will continue in CAR. Leaders of EU member states must provide strong political and financial support for the fight against impunity, including by strengthening the Special Criminal Court and rebuilding the national justice system.”

A lawyer in the capital Bangui told Amnesty International in October that the level of impunity had “almost reached a point of no return”.

Despite peaceful elections in December 2015 and February 2016, the security situation has sharply deteriorated since September 2016. Armed groups have launched numerous attacks killing dozens of civilians in Bangui and across CAR, including internally **displaced** persons (IDPs) under UN protection.

The attacks have also restricted the delivery of basic services including food, shelter and health provided by humanitarian agencies to tens of thousands of people. One of the most serious attacks took place in the northern city of Kagabandoro on 12 October, when ex-Séléka fighters from at least two different factions killed at least 37 civilians, injured 60, and set an IDP camp on fire.

The May 2015 Bangui forum – which brought together Central African leaders from the transitional government and various other groups – made strong recommendations on the importance of the fight against impunity, including the establishment of a Special Criminal Court.

Delegates rejected any claim to immunity or amnesties for those allegedly responsible for crimes under international law and signed a Disarmament, Demobilization and Reintegration (DDR) agreement. While some steps have been taken to implement these recommendations, much remains to be done.

Outside Bangui justice is largely absent, with seven high courts out of 24 and one appeal court out of three non-operational. There is a desperate need to rebuild CAR's criminal justice system, to address the lack of judicial staff, the scarcity of material and financial resources for the judiciary, and the lack of protective measures for victims and witnesses.

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This is a crucial opportunity for the EU to commit to addressing root causes of the bloody and intractable conflict in CAR.

Ilaria Allegrozzi

These and other structural weaknesses of the CAR justice system surfaced during the latest criminal trial sessions held in Bangui between August and September 2016. Only one

victim testified during this session, a clear result of the lack of protective measures for both victims and witnesses. During this session, several perpetrators charged in conflict-related cases were acquitted or convicted on minor charges and released after being credited for time served.

Until the national justice system can be adequately restored, in the short term, Amnesty International considers that strengthening the Special Criminal Court must be a priority for the CAR government and donor states in the EU and elsewhere.

“This is a crucial opportunity for the EU to commit to addressing root causes of the bloody and intractable conflict in CAR. While there have been positive developments in the last few months, including the holding of largely peaceful elections, CAR cannot truly move towards peace until there is accountability for crimes under international law,” said Ilaria Allegrozzi.

Amnesty International also calls on international donors to address other initiatives including security sector reform, truth and reconciliation commissions, programmes to disarm, demobilize, reintegrate and repatriate armed groups and militias, and investments to promote socio-economic development.

Background

An internal armed conflict in CAR has been raging since late 2012, when the mostly Muslim Séléka armed coalition took power, committed serious abuses and plunged the country into crisis. In response, the mainly Christian and animist anti-Balaka militia groups mobilized and carried out horrific attacks against the civilian population, including Muslims.

In July 2014, Amnesty International released a report *Time for Accountability*, which named 21 individuals from all parties to the conflict that the organization believed should be investigated for crimes under international law, including war crimes and crimes against humanity, and arrested and prosecuted if sufficient evidence was produced. More than two years on, the overwhelming majority of these individuals remain at large.

In June 2015, CAR’s transitional President promulgated a law establishing a Special Criminal Court within the national judicial system, comprised of national and international judges, to investigate and prosecute the most serious crimes committed in the country since 2003, including genocide, war crimes and crimes against humanity. The appointment of the international Special Prosecutor of the Court is expected to take place before the end of the year.

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